



MARINE MAINTENANCE PLAN

NEW DEALER ENROLLMENT FORM

DEALERSHIP INFORMATION			
LEGAL BUSINESS NAME:		DBA IF APPLICABLE:	
BUSINESS ADDRESS:			
CITY:	STATE:	ZIP:	PHONE #:
EIN:		DEALER NUMBER:	
BRANDS CARRIED:			
AUTHORIZED DEALERSHIP CONTACTS:			
Please list all authorized service and sales staff including: Finance Managers, Service Managers, Service Writers, Warranty Writers, Business Managers, etc.			
NAME:	POSITION:	NAME:	POSITION:
1		6	
2		7	
3		8	
4		9	
5		10	
ACCOUNTING INFORMATION			
ACCOUNTS RECIEVEABLE CONTACT:			
PHONE NUMBER:		EMAIL:	
ACCOUNT NUMBER:		ROUTING NUMBER:	

WHITESTONE PARTNERS DEALER PARTICIPATION AGREEMENT

This Dealer Participation Agreement ("Agreement") is entered into as of _____ ("Effective Date") by and between Whitestone Partners, LLC, a Utah limited liability company ("Provider"), and _____ ("Dealer").

ACH AUTHORIZATION

Dealer authorizes Provider to initiate electronic ACH credits and debits to the business bank account designated by Dealer for purposes including dealer compensation, claims reimbursement, cancellations, chargebacks, payment corrections, administrative fees, reconciliation adjustments, and other amounts arising under this Agreement. Dealer certifies all banking information provided is accurate and authorized for business use and agrees to promptly notify Provider in writing of any banking changes.

1. DEFINITIONS

"Program" means the Whitestone Marine Maintenance Plan. "Customer Agreement" means the maintenance agreement and enrollment documentation issued to a customer. "Covered Services" means only those services expressly authorized under the applicable Customer Agreement and Provider guidelines. "Program Cost" means the wholesale amount owed by Dealer to Provider for participation in the Program. "Dealer Margin" means the difference between the retail price charged to the customer and the applicable Program Cost. "Claims" means requests for reimbursement submitted by Dealer under the Program.

2. PURPOSE

This Agreement establishes the terms under which Dealer is authorized to market, sell, and perform Covered Services under the Program.

3. RELATIONSHIP OF PARTIES

Dealer is an independent contractor and not an employee, agent, partner, joint venturer, or representative of Provider. Dealer has no authority to bind Provider except as expressly authorized herein. Nothing in this Agreement creates an exclusive relationship between the parties. Dealer is solely responsible for its employees, subcontractors, operations, and compliance with applicable law.

4. DEALER AUTHORIZATION & RESPONSIBILITIES

Provider authorizes Dealer to market and sell the Program and perform Covered Services. Dealer shall maintain all required licenses, insurance, qualified personnel, and operational capabilities necessary to perform its obligations.

Dealer agrees to market and present the Program accurately, ethically, and in compliance with all applicable laws and Provider procedures and shall not make any unauthorized representation regarding coverage, benefits, exclusions, claims approval, or Program terms. Dealer shall ensure all required disclosures and Customer Agreements are properly completed and executed.

Dealer shall ensure all employees, finance personnel, sales representatives, and agents involved in selling or administering the Program comply with applicable laws, disclosure requirements, and Provider procedures. Dealer shall be responsible for any misrepresentation, deceptive sales practice, omission, or unauthorized representation made by its personnel.

Dealer shall perform all services in a professional and workmanlike manner consistent with manufacturer recommendations, industry standards, and Provider requirements and shall accurately document engine hours, services performed, service dates, customer information, and related records.

Dealer may utilize subcontractors only if such parties are properly qualified and insured; however, Dealer shall remain fully responsible for all workmanship, compliance, documentation, and obligations under this Agreement.

Provider shall administer the Program, review claims, provide operational procedures and guidelines, and maintain reimbursement insurance or other financial backing where required by law. Provider may modify pricing, procedures, operational requirements, claims processes, or administrative policies upon reasonable notice.

5. FINANCIAL TERMS

Provider shall establish Program Cost pricing. Dealer may establish its own retail selling price unless otherwise prohibited by law or Provider policy. Dealer compensation consists solely of the Dealer Margin retained from the sale of the Program.

Program Cost amounts become due and payable upon Dealer's receipt of customer funds or execution of the applicable Customer Agreement, whichever occurs first. Dealer shall remit all Program Cost amounts owed to Provider no later than the weekly settlement deadline established by Provider.

Dealer acknowledges that Program Cost amounts collected in connection with Program sales are contractually owed to Provider and shall maintain commercially reasonable accounting controls relating to such funds pending remittance.

Provider may require ACH payments, electronic settlement procedures, reconciliation reporting, portal usage, or additional accounting documentation reasonably necessary to administer the Program. Dealer is responsible for maintaining the confidentiality and security of portal credentials and account access.

Provider may offset future payments or invoice Dealer for cancellations, unearned Dealer Margin, chargebacks, overpayments, duplicate payments, denied claims, failed customer financing transactions, returned payments, fraudulent transactions, administrative fees, improperly submitted contracts or claims, or other amounts owed under this Agreement.

Provider may suspend Dealer participation, claims processing, reimbursements, or Dealer authority to sell new Program agreements for nonpayment, suspected fraud, excessive chargebacks, material breach, operational risk, or regulatory concerns.

Dealer is solely responsible for all taxes arising from Dealer Margin, reimbursements, or payments received under this Agreement.

6. CLAIMS ADMINISTRATION

Dealer shall submit all Claims in accordance with Provider procedures and Program requirements and shall provide all documentation reasonably requested by Provider including repair orders, invoices, technician notes, engine hour verification, customer information, proof of payment, and supporting service records.

Dealer shall separately identify Covered Services and non-covered customer-pay services on all repair orders and invoices submitted to Provider.

All Claims are subject to Provider review, verification, adjustment, and approval. Submission of a Claim does not guarantee approval or reimbursement. Provider may deny, adjust, delay, or request additional information regarding any Claim that is incomplete, inaccurate, inconsistent, exceeds reasonable service intervals, violates Program requirements, or otherwise fails to comply with applicable procedures.

Approved Claims reimbursements shall generally be paid electronically via ACH within ____ business days following approval and receipt of all required documentation.

Provider may suspend Claims processing or reimbursement activity upon reasonable suspicion of fraud, altered records, inflated invoices, duplicate submissions, unauthorized services, false documentation, or other improper conduct. Dealer shall fully cooperate with any investigation.

Provider may establish commercially reasonable reserve, holdback, deferred payment, audit review, fraud prevention, or reconciliation procedures relating to cancellations, pending Claims, anticipated chargebacks, or operational risk management.

7. CUSTOMER RELATIONSHIP

Dealer acknowledges that the Customer Agreement is between the customer and Provider and that Provider is the legal obligor under the Program. Dealer shall not modify Program terms or make unauthorized promises or representations.

Customer disputes relating to service quality or workmanship shall be handled by Dealer. Questions relating to Program coverage or contract administration shall be handled by Provider.

8. CANCELLATIONS & REFUNDS

Customer cancellations shall be governed exclusively by the applicable Customer Agreement and applicable law. Dealer acknowledges that Provider is solely responsible for administering customer refunds.

Dealer acknowledges that cancellations may result in chargebacks or reductions of unearned Dealer Margin calculated on a pro-rata basis less Claims paid and applicable administrative fees. Dealer agrees to promptly satisfy any resulting balance owed to Provider.

9. ADMINISTRATIVE FEES

Provider may assess commercially reasonable administrative fees relating to cancellations, chargebacks, reconciliation activity, returned payments, or improper submissions. Such fees shall not be charged directly to customers unless permitted by applicable law and disclosed in the applicable Customer Agreement.

10. AUDIT & RECORD RETENTION

Provider may conduct remote or on-site audits of Dealer records, Claims, settlement activity, customer documentation, and Program compliance upon reasonable notice. Dealer shall cooperate fully and provide all requested documentation.

Dealer shall maintain all Program-related records for a minimum of five (5) years following termination or expiration of this Agreement or longer if required by applicable law.

11. COMPLIANCE WITH LAW

Dealer shall comply with all applicable federal, state, and local laws, consumer protection laws, advertising laws, service contract regulations, licensing requirements, and disclosure obligations relating to the marketing, sale, administration, and performance of the Program.

12. INSURANCE

Dealer shall maintain commercially reasonable insurance coverage including general liability, garage liability where applicable, and workers' compensation coverage where required by law and shall provide proof of insurance upon request.

13. TERM & TERMINATION

This Agreement shall remain in effect until terminated by either party upon thirty (30) days written notice or immediately for fraud, material breach, nonpayment, regulatory concerns, insolvency, bankruptcy, misrepresentation, or unlawful conduct.

Upon termination, Dealer shall immediately cease marketing and selling the Program; however, existing Customer Agreements shall remain in force pursuant to their terms.

Dealer shall promptly notify Provider of insolvency, bankruptcy filings, cessation of operations, material asset sales, or material financial impairment.

14. INDEMNIFICATION

Dealer shall indemnify, defend, and hold harmless Provider and its affiliates, officers, employees, insurers, and representatives from any claims, damages, liabilities, losses, penalties, costs, or expenses arising out of Dealer's operations.

15. LIMITATION OF LIABILITY

Provider shall not be liable for Dealer workmanship, service quality, lost profits, indirect damages, consequential damages, or customer dissatisfaction relating to Dealer operations. Provider's liability under this Agreement shall not exceed amounts paid under the applicable Program agreement.

16. CONFIDENTIALITY

Dealer shall maintain the confidentiality of Provider pricing, operational procedures, business practices, Program materials, claims procedures, and non-public information and shall not disclose such information except as necessary to perform obligations under this Agreement.

17. DISPUTE RESOLUTION

This Agreement shall be governed by the laws of the State of Utah unless otherwise required by applicable law. Any dispute arising under this Agreement shall be resolved exclusively in Salt Lake County, Utah.

The prevailing party in any legal action arising from this Agreement shall be entitled to recover reasonable attorney fees and costs.

18. GENERAL PROVISIONS

This Agreement constitutes the entire agreement between the parties and supersedes all prior discussions or understandings relating to the subject matter herein.

Failure of either party to enforce any provision shall not constitute waiver of such provision. If any provision of this Agreement is determined unenforceable, the remaining provisions shall remain in full force and effect.

Neither party shall be liable for delays caused by events beyond reasonable control including acts of God, natural disasters, labor disputes, governmental actions, utility failures, or other force majeure events.

Electronic signatures, electronic records, and electronically transmitted documents shall have the same force and effect as original signed documents.

The provisions relating to payment obligations, chargebacks, audit rights, confidentiality, indemnification, dispute resolution, record retention, and any obligations intended by their nature to survive termination shall survive termination of this Agreement.

SIGNATURES

WHITSTONE PARTNERS SIGNATURE: _____
BY: _____

DATE: _____

DEALER AUTHORIZED SIGNATURE: _____
BY: _____

DATE: _____